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CASE NAME: Chan v. Naami, et al.

CASE NO.: 26SMCV00302

MOTION: Demurrer and Motion to Strike to the Complaint

HEARING DATE: 9/18/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendants Moussa Naami

and Fariba Naami demur to Plaintiff Joellen Chan's Complaint, including the third, seventh and ninth cause of action, and move to strike the request for punitive damages, mental distress, and disgorgement.

Third

Cause of Action for Unlawful Business Practices

Business

and Professions Code section 17200 prohibits “any unlawful, unfair or

fraudulent business act or practice.” (Bus. & Prof. Code § 17200.) “An unlawful business practice or act is an act or practice, committed pursuant to business activity, that is at the same time forbidden by law.” (Klein v. Earth Elements, Inc. (1997) 59 Cal.App.4th 965, 969.) “A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1473.) To establish a fraudulent practice under the UCL, the plaintiff must show that members of the public are likely to be deceived. (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 806; see Morgan v. AT&T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235, 1256 [fraud prong of the UCL is less rigorous than common law fraud as common law fraud requires allegations of actual falsity and reasonable reliance while fraud under UCL does not].)

The Complaint alleges Defendants engaged in unlawful, unfair, and fraudulent business practices by repeatedly violating California landlord-tenant laws, local housing ordinances, and duties imposed by common law. (Compl., ¶¶ 65, 67-69.) The Complaint specifically cites violations including: failing to maintain habitable premises; refusing to accept or process lawful rent payments; manufacturing alleged nonpayment of rent; serving defective and inflated notices to pay or quit; engaging in retaliation; reducing or eliminating required housing services; performing unlawful entries; and using the eviction process as a harassment. (Id., ¶ 65.) The Complaint alleges detailed facts concerning the alleged habitability issues (including pest infestations, mold, defective electrical outlets posing fire hazards) (Id., ¶¶ 15-23.)

The Complaint also alleges detailed facts Defendants maintenance which exposed Plaintiff to gas, carbon monoxide, and other toxic fumes. (Id., ¶¶ 24-27.) The Complaint alleges additional facts concerning Defendants harassment and stalking behavior, including that Defendants repeatedly entered Plaintiff’s premises and storage unit without notice, loitered around the unit, peered into the windows, and surveilled Plaintiff by taking photos. (Id., ¶¶ 28-35, 45-47.) The Complaint alleges that Defendants reduced housing services in retaliation against Plaintiff’s complaints of the habitability issues. (Id., ¶¶ 36-39.) Defendants also fraudulently refused rent payment(s) and used this refusal as a pretext to file a retaliatory unlawful detainer action. (Ibid.) Such conduct may be fairly described as unlawful or fraudulent.

Defendants

attack Plaintiff’s standing under the UCL. “To satisfy the narrower standing

requirements imposed by Proposition 64, a party must now (1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., economic injury, and (2) show that that economic injury was the result of, i.e., caused by, the unfair business practice or false advertising that is the gravamen of the claim.”² (Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322.)³ “There are innumerable ways in which economic injury from unfair competition may be shown. A plaintiff may (1) surrender in a transaction more, or acquire in a transaction less, than he or she otherwise would have; (2) have a present or future property interest diminished; (3) be deprived of money or property to which he or she has a cognizable claim; or (4) be required to enter into a transaction, costing money or property, that would otherwise have been unnecessary.”⁴ (Id. at 323; see Law Offices of Mathew Higbee v. Expungement Assistance Services (2013) 214 Cal.App.4th 544, 555-56 [“an identifiable trifle [of injury] is enough for standing”].) Plaintiff alleges a basis for standing under the UCL. As a result of Defendants’ unlawful, unfair, and fraudulent business practices, Plaintiff suffered an injury-in-fact, including the loss of rental value due to diminished habitability, emotional distress, and the expenses and burdens associated with defending against an improperly initiated eviction proceeding. (Compl., ¶ 70.) Plaintiff paid rent while Defendants engaged in the above unlawful conduct. (Id., ¶¶ 5-6.) The unlawful conduct required Plaintiff to surrender more money in rent than she would have reasonably done under the circumstances of diminished habitability and housing services. (Id. ¶¶ 15-27, 36-39.) The conduct also deprived Plaintiff of cognizable property rights. (Id.) This conduct also required Plaintiff to enter into transactions that would have otherwise been unnecessary, such as for medical care. (Id., ¶ 18.)

Accordingly, the demurrer is OVERRULED based upon a lack of standing.

Seventh Cause of Action
for IIED

A cause of action for intentional infliction of emotional distress (“IIED”) exists when there is: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051.) A

defendant's conduct is "outrageous" when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.)

The defendant must either intend his or her conduct to inflict injury or engaged in it with the realization that injury will result. (Ibid.)

Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.) Generally, the question of whether the conduct is in fact outrageous is a question of fact to be determined beyond the pleading stage. (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004.) Courts have held that a tenant's emotional distress caused by landlord's alleged "knowing, intentional, and willful" failure to correct defective conditions of the premises can form the basis of an emotional distress claim. (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 921.) "With respect to the requirement that a plaintiff show severe emotional distress, this court has set a high bar. 'Severe emotional distress means ""emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." ' ' ' ' [Citation.]" (Hughes, supra, at 1051.)

The Complaint alleges

facts supporting the elements of IIED. First, Defendants allegedly engaged in intentional, extreme and outrageous conduct. (Compl., ¶ 97.) Such conduct includes refusing to accept or process Plaintiff's lawful rent payments; manufacturing a false claim of nonpayment; initiating an eviction proceeding based on their own refusal to accept rent; failing to remedy hazardous and unsanitary conditions (including a refusal to repair hazardous openings caused by rats); venting dangerous gas into Plaintiff's property; ignoring mold, dampness, and water intrusion; allowing rodent and pest infestations; performing unauthorized entries into Plaintiff's residence; repeatedly invading Plaintiff's privacy, including via alleged stalking and surveillance; and withholding housing services. (Id., ¶¶ 15-47, 97.) Whether such behavior, in fact, rises to the level of extreme and outrageous conduct would be a question of fact to be determined outside the pleading stage.

Defendants engaged in such

conduct in order to pressure Plaintiff into vacating her home through fear, intimidation, and intolerable living conditions. (Compl., ¶ 97.) Defendants intended to cause Plaintiff emotional harm or with reckless disregard for the probability of such harm. (Id., ¶98.) Defendants knew, or reasonably should have known, that their actions would cause Plaintiff to experience severe emotional

distress, anxiety, and fear. (Id.)

Defendants' conduct

allegedly caused Plaintiff's emotional distress. (Compl., ¶¶ 28, 31, 34, 43, 47, 99.) Plaintiff suffered severe emotional distress, including anxiety, fear, distress related to the habitability conditions, worry about her housing stability, and disruption of her daily life. (Ibid.)

Accordingly, the demurrer is
OVERRULED.

Ninth Cause of Action for Negligence Per Se

The

doctrine of negligence per se "is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence." (Johnson v. Honeywell Int'l Inc., (2009) 179 Cal. App. 4th 549, 555-56, emphasis added, internal quotations omitted.) As no such independent cause of action exists, the demurrer is SUSTAINED without leave to amend. Plaintiff may rely on the evidentiary doctrine of negligence per se as part of the sixth cause of action for general negligence.

Motion to Strike – "Standalone" Cause of Action for Punitive Damages

Defendants assert that Plaintiff

improperly pleads a separate cause of action captioned "Punitive Damages." The Court agrees that there is no cause of action for punitive damages, since punitive or exemplary damages "are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code §3294]." (Grieves, supra, 157 Cal.App.3d at 164.) However, the Complaint does not allege such an independent cause of action. Instead, the Complaint alleges several causes of action claiming punitive damages. (Compl., ¶¶ 8, 56, 80, 100, 122.) The section entitled punitive damages does not claim to be an independent, standalone cause of action. (Id., ¶¶ 123-127.) Defendants cite no rule of pleading which would disallow stating additional allegations in support of the remedy of punitive damages in its own "section" of a complaint. Therefore, the Court denies the motion to strike the targeted paragraphs for this reason.

Motion to Strike - Punitive Damages

Defendants assert that
the Complaint fails to state ultimate facts in support of punitive damages.

In order to state a
prima facie claim for punitive damages, a complaint must set forth the elements
as stated in the general punitive damage statute, Civil Code Section 3294.
These statutory elements include allegations that the defendant has been guilty
of oppression, fraud or malice. (Civ. Code § 3294 (a).) Civil Code section
3294(c) defines malice as conduct “intended by the defendant to cause injury to
the plaintiff,” or “despicable conduct which is carried on by the defendant
with a willful and conscious disregard of the rights or safety of others.”
“‘Oppression’ means despicable conduct that subjects a person to cruel and
unjust hardship in conscious disregard of that person’s rights.” (Civ. Code §
3294(c)(2).) Despicable is a powerful term used to describe circumstances that
are “base,” “vile,” or “contemptible.” (Coll. Hosp. v. Superior Ct.
(1994) 9 Cal.4th 704, 726.) The statute “plainly indicates that absent an
intent to injure the plaintiff, “malice” requires more than a “willful and
conscious” disregard of the plaintiffs’ interests. The additional component of
“despicable conduct” must be found.” (Id.)

“In order to survive a
motion to strike an allegation of punitive damages, the ultimate facts showing
an entitlement to such relief must be pled by a plaintiff. [Citations.] In
passing on the correctness of a ruling on a motion to strike, judges read allegations
of a pleading subject to a motion to strike as a whole, all parts in their
context, and assume their truth. [Citations.] In ruling on a motion to strike,
courts do not read allegations in isolation. [Citation.]” (Clayson v.
Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an
intentional tort was committed is not sufficient to warrant an award of
punitive damages. [Citation.] Not only must there be circumstances of
oppression, fraud or malice, but facts must be alleged in the pleading to
support such a claim. [Citation.]” (Grievous v. Superior Ct. (1984) 157
Cal.App.3d 159, 166, fn. omitted.)

Generally, punitive
damages are available for breach of implied warranty of habitability where a
landlord defendant willfully and consciously disregards a known uninhabitable
condition. (Stoiber, supra, 101 Cal.App.3d at 925-926.) For example, in Stoiber,
the court found that a plaintiff could recover punitive damages for numerous

persistent uninhabitable conditions of which she repeatedly notified the landlord defendants. (Id. at 921.) The plaintiff alleged specific uninhabitable conditions, including heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, overfused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard. (Ibid.) Despite notice, the defendants knowingly, intentionally and willfully failed to correct the defective conditions by not even attempting to repair the defects, except on one occasion where they sent a plumber in response to a complaint regarding the toilet. (Id. at 913.)

The

Complaint alleges facts in support of the allegations of malice. As discussed, the Complaint pleads specific facts supporting the allegations that Defendants maintained uninhabitable conditions, knowingly and with a conscious disregard for Plaintiff's safety. For example, Defendants installed an illegal heater that vented toxic fumes into Plaintiff's home (§§ 24-25) and left carbon monoxide detectors and fire alarms nonfunctional despite notice from officials (§ 27). The Complaint also supports the claim for punitive damages in connection with Defendants alleged intentional harassment and retaliation. (Compl., §§ 28-35.) Defendants repeatedly entered Plaintiff's home and private areas at night without notice, photographed her home without consent. (Id.) Defendants manufactured a false claim of nonpayment after years of collecting rent by check under the mat and filed a retaliatory unlawful detainer based on their own refusal of rent (Id., §§ 39, 51-53.) Such acts of harassment and neglect were intended to make living conditions unbearable so that Plaintiff would vacate the Premises. (Id., §§ 44, 47, 54, 60, 77, 97, 102-103, 124.) Such intentional torts may be fairly considered "intended to harm" within the meaning of malice as defined by section 3294.

However,

the Court agrees that paragraph 80 should be stricken. Paragraph 80 requests punitive damages in connection with the breach of covenant of good faith and fair dealing, which sounds in contract. (Civ. Code § 3294(a) [excluding breach of contract claims]; see *Hicks v. E.T. Legg & Associates* (2001) 89 Cal.App.4th 496, 508 [every contract imposes upon each party a duty of good faith and fair dealing in its performance and its enforcement].) "In the absence of an independent tort, punitive damages may not be awarded for breach of contract 'even where the defendant's conduct in breaching the contract was wilful [sic], fraudulent, or malicious.'"

(Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503, 516.) Stoiber only permits punitive damages in the landlord-tenant context in connection with tortious breaches of the warranty of habitability and for nuisance, which are duties independent of the contract. (Stoiber, supra, 101 Cal.App.3d at 919-920.)

Accordingly,

the motion is GRANTED in part. Paragraph 80 is stricken. The remainder of the motion is DENIED.

Motion

to Strike – Disgorgement

Defendants move to strike the request for damages and disgorgement under the UCL, arguing that these remedies are not available. The remedies for UCL claims brought by private individuals are limited to injunctive relief and restitution. (Prakashpalan v. Engstrom, Lipscomb and Lack (2014) 223 Cal.App.4th 1105, 1133.) “The word ‘restitution’ means the return of money or other property obtained through an improper means to the person from whom the property was taken.” (Clark v. Superior Court (2010) 50 Cal.4th 605, 614.) “The object of restitution is to restore the status quo by returning to the plaintiff funds in which he or she has an ownership interest.” (Id.) Disgorgement of profits is not an available remedy under a UCL claim brought by a private individual. (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1150-52.)

The Complaint alleges that Plaintiff

suffered “economic and non-economic damages” as a result of Defendants’ unlawful business conduct. (Compl., ¶ 70.) Damages are not an available remedy under the UCL. Therefore, the allegation of resulting damages from the unlawful business conduct is irrelevant to that extent. However, the allegations of resulting damage also supports the standing requirement of the UCL claim. Thus, the allegation of resulting damages is not entirely irrelevant, false, or improperly drawn.

As

to disgorgement, the Complaint requests “disgorgement of any money obtained or retained by Defendants through their unlawful practices.” (Compl., ¶ 71.) Paragraph 71 does not seek disgorgement of “profits.” It only alleges a claim of restitutionary

disgorgement, which is permitted by the UCL. The Prayer, however, alleges entitlement to disgorgement “of ill-gotten gains.” The term “gains” implies that Plaintiff seeks disgorgement of profits.

Accordingly,

the motion GRANTED as to the allegation “of ill-gotten gains” in Prayer ¶ F, and the remainder of the motion is DENIED.